



JAMAICA CONSTABULARY FORCE

Centre for Investigation of Sexual Offences and Child Abuse Standard Operating Procedures

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1.0 Introduction

The Centre for Investigation of Sexual Offences and Child Abuse (CISOCA) is the Unit within the Jamaica Constabulary Force tasked with the responsibility of investigating sexual offences and abuses against children. The development of CISOCA began in the latter part of the 1980's, focusing on the crime of rape from which its former name was given—Rape Unit. With the subsequent increase of reports relative to other sexual offences and abuses against children, the name of the Unit was changed from Rape Unit to CISOCA resulting in an extension of the scope of operations.

There are fourteen (14) CISOCA offices island-wide. CISOCA offices operate on a 24-hour basis with investigative capacity including forensic medical examinations, forensic processing which covers specimen retrieval, packaging, and storage. CISOCA Kingston, however, covers all divisions in Area 4 and St Andrew North which is located in Area 5.

To streamline the investigation of sexual offences and further underscore CISOCA's mandate, the team of specially trained investigators concentrate on the investigation of certain categories of 'major' sexual offences while uniform personnel in geographic divisions are responsible for the investigation of other 'minor' offences.

It was therefore necessary that this Standard Operating Procedures (SOP) be developed to ensure that service delivery standards are consistent and investigative processes are standardized and in keeping with legislations, organizational policies, SOPs and guidelines and best known practices.

2.0 Purpose

The purpose of this Standard Operating Procedure (SOP) is to standardize and maintain the investigative processes regarding reports of sexual offences and child abuse.

3.0 Scope

This SOP applies to all sworn members of the JCF and Rural Police Force. It outlines the unit's standards on how to manage and investigate reports of sexual offences and child abuse.

4.0 Abbreviations and Acronyms

CPFSA	Child Protection and Family Services Agency
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DNA	Deoxyribonucleic acid
IO	Investigating Officer
SAFE Kit	Sexual Assault Forensic Evidence Kit
VSD	Victim Services Branch

5.0 Definitions

For the purpose of this policy and SOP, the following definitions shall apply:

5.1 Case file

A file that has been generated and assembled pertaining to a reported incident or a crime under investigation

5.2 Case Management

A system designed to provide quality assurance for investigative services and processes that record, assess, monitor and evaluate all incidents and investigations.

5.3 Customer Attendance Book

This book captures the bio data and other relevant information of customers who attend CISOCA.

5.4 Divisional Case Registry

It is the central repository within a division that manages and operates a standardized and organized record keeping system that stores case files and records of reported crimes or incidents, complaints and related activities.

5.5 Investigation

A systematic and thorough process of gathering, collecting and analyzing information, facts and evidence to uncover the truth, solve a problem or address a specific issue in relation to a reported crime or incident

5.6 Inspection

The process of examining, reviewing or evaluating the investigation processes to determine whether the standards of the JCF are met.

5.7 Person of Interest

This refers to an individual who is believed to have relevant information (directly or indirectly) or knowledge that can assist an investigation.

5.8 Suspect

A person, who is identified, based on some amount of evidence and is reasonably believed to have committed a crime.

5.9 Working Case File

A copy of the original case file given to an investigator to conduct investigations

5.10 Child

any person under the age of 18 years as outlined in Child Care and Protection Act, 2004, Section 2 and any person under the age of 16 years old as outlined in the Sexual Offences Act, 2009.

5.10 Child-sensitive

an approach which reflects awareness of the special needs of children and gives primary consideration to the child's individual needs, maturity, abilities and views

5.11 Prescribed Person

a person as defined under Section 6 the Child Care and Protection Act 2004

6.0 Responsibilities

The following outlines key responsibilities:

6.1 Assistant Commissioner of Police Criminal Investigation Branch (CIB) has oversight of the operations of CISOCA.

6.2 Senior Superintendent of Police Centre for the Investigation of Sexual Offences and Child Abuse (CISOCA) should:

6.2.1 manage the daily administrative, investigative and operational activities and assets of the Unit;

6.2.2 provide timely reports on CISOCA matters to ACP CIB;

6.2.3 ensure that inspections of the Divisional Case Registry are conducted and the findings reported to ACP CIB;

6.2.4 foster and manage relationship with key stakeholders;

- 6.2.5 ensure that staff is adequately trained and equipped to carry out their functions;
and
- 6.2.6 ensure that all reported crimes are managed in accordance with organizational policies & SOP.
- 6.3 Administrative Officer should:**
 - 6.3.1 manage all matters regarding personnel, training and record keeping;
 - 6.3.2 ensure that all returns and reports are completed and submitted within the required time to the relevant parties;
 - 6.3.3 manage the operations of the General Office; and
 - 6.3.4 conduct training needs analysis (to identify training gaps) and make recommendation to SSP CISOCA where necessary.
- 6.4 Crime Officer should:**
 - 6.4.1 manage and oversee all reported crimes and incidents of sexual offences;
 - 6.4.2 hold case reviews and attend case conferences;
 - 6.4.3 conduct inspection of the Divisional Case Registry bi-annually;
 - 6.4.4 ensure that all sexual offences reported are documented at CISOCA and the respective divisions where the crime was committed; and
 - 6.4.5 submit a report to SSP CISOCA on conclusion of each shift regarding all occurrences of crime reports, operations and/or administration.
- 6.5 Registrar should:**
 - 6.5.1 manage the operations of the Divisional Case Registry;
 - 6.5.2 ensure the standard of the investigative processes are maintained in accordance with the *JCF Case Management Policy & Standard Operation Procedures*;
 - 6.5.3 cause outstanding documents to be submitted to the courts in a timely manner and update copy file;
 - 6.5.4 vet or cause to be vetted case files and assign tasks to IO;
 - 6.5.5 communicate with the Sub-Officer on Duty regarding the assignment of preliminary investigator due to the factors that may arise;
 - 6.5.6 bring to the attention of the IO and his/her supervisor all assigned cases;
 - 6.5.7 maintain a well-organized case filing and record system;
 - 6.5.8 ensure the Divisional Case Report Register is updated on a daily basis;
 - 6.5.9 ensure that all investigators provide regular update on cases in line with review

dates; and

6.5.10 ensure that all sexual offences reported in the divisions between the hours of 5:30 am - 5:30 am the succeeding day are prepared and submitted to the Crime Officer each morning.

6.6 Sub-Officer on Duty/Station Officer should:

6.6.1 Supervise staff;

6.6.2 ensure that all reported cases of sexual offences and child abuse are appreciated and an IO tasked to conduct preliminary investigation; and

6.6.3 submit a report to the Crime Officer on conclusion of each shift regarding all occurrences of crime reports, operations and/or administration.

6.7 Prosecutions Liaison Officer should:

6.7.1 attend all court hearings at the designated court as the representative of the Investigating Officer;

6.7.2 provide prompt updates to the Registrar, IO and all witnesses after each court hearing;

6.7.3 update the court regarding the availability of all witnesses;

6.7.4 bring to the attention of the Registrar any matter that requires his/her immediate attention;

6.7.5 monitor and oversee the timely completion and submission of all outstanding evidence, certificates etc. required to complete the file; and

6.7.6 submit a weekly report to the Registrar of all courts attended, detailing all activities particularly on matters that require the immediate attention of the Registrar and/or IO.

6.8 Investigation Officers should ensure that:

6.8.1 all cases assigned to him/her are thoroughly investigated in accordance with relevant legislations, organizational policies and SOPs and best known investigative practices;

6.8.2 maintain a working case file;

6.8.3 the supervisor is kept updated on the status of investigations as required;

6.8.4 follow-up investigation and keep victim updated on the status of the case;

6.8.5 attend case review and case conferences where required;

- 6.8.6 he/she attends court on the initial mention and trial dates in all cases and on all occasions where the investigator is bound over by the court; and
- 6.8.7 periodically keep complainants and witnesses informed of the status and progress of the investigations.
- 6.9 Crime Analyst should:**
 - 6.9.1 analyze crime statistics and trends;
 - 6.9.2 submit crime analysis report to Crime Officer and SSP CISOCA on a weekly basis; and
 - 6.9.3 maintain the Wanted Person and Persons of Interest Catalog.
- 6.10 Scenes of Crime Unit shall** process scenes of sexual offences and child abuse, where applicable in accordance with the JCF Scene of Crime Policy and Standard Operating Procedures (SOP).
- 6.11 Exhibit Unit shall** store, record and manage all exhibits in accordance with JCF guidelines for the handling of exhibits and investigative best practices.
- 6.12 Initial Responding Officer shall:**
 - 6.12.1 conduct a preliminary investigation of reports to ascertain the nature of the offence and required action;
 - 6.12.2 inform the Divisional Duty Officer/ Sub- officer of all reported cases of sexual offences and/or child abuse coming to his/her attention;
 - 6.12.3 complete the relevant columns in the JCF CISOCA Customer Attendance Book; and
 - 6.12.4 provide victim care support, where applicable.

7.0 Standard Operating Procedures

The following procedures outline the standards for the investigation of sexual offences and child abuse:

7.1 Appreciating Reports

When a complainant or victim attends CISOCA and makes a report, the following shall apply:

- 7.1.1 Reports shall be appreciated in accordance with the *JCF Police Public Interaction Policy and Standard Operating Procedures*;
- 7.1.2 conduct an interview to determine the nature of the report and action required.
- 7.1.3 **All interviews must be conducted in a confidential area;**
- 7.1.4 Bring to the attention of the Sub-Officer on duty all reported cases who shall assess the report and make a determination of the required action(s).
- 7.1.5 Where it is established that a crime has or suspected to have occurred, the Sub-Officer on Duty shall immediately assign a preliminary investigator to conduct the investigation. An entry must be made in the Crime Diary and the Electronic Case Management System (ECMS).
 - 7.1.5.1 The Divisional Case Registry will register the geographic Division where the crime occurred as an “Interested Party” in the investigation in the ECMS.
- 7.1.6 Where a report is made and the circumstances does not establish that a crime as occurred, the Sub-Officer on Duty shall inform the complainant and advice of possible course of action(s) where necessary. An entry must be made in the JCF CISOCA Customer Attendance Book, the Crime Diary; and the Electronic Case Management System (ECMS)
- 7.1.7 Where a complainant makes a report on behalf of an adult victim, the Sub-officer shall make every effort to contact the victim. Should the victim refuse, the complainant must be asked to take/advice the victim to attend CISOCA or the nearest police station to make a report.
- 7.1.8 Where it is observed that the victim has injuries, or complaints of feeling ill, a the victim must be taken to a medical facility where practicable.
- 7.1.9 The Sub-Officer shall complete the relevant columns in the JCF CISOCA Customer Attendance Book before the end of that shift of receiving the initial report.
- 7.1.10 Where an adult victim wishes not to proceed in having the suspect arrested and/or criminally charged, procedures outlined in the JCF Case Management Policy and Standard Operating Procedures shall be carried out.

7.1.11 Contact the Forensic Crime Scene Investigator at CISOCA and Technical Services Division for the victim and/or scene to be processed where required; and

7.1.12 Prepare an initial case file and submit it to the Divisional Case Registry in accordance with the JCF Case Management Policy and Standard Operating Procedures.

7.2 Handling reports or investigation regarding Children as Victims:

7.2.1 All interaction with child victims should be in strict adherence with relevant legislation and the JCF Child Interaction Policy;

7.2.2 Victims who are **17 years old** or younger should be interviewed in the presence of a parent/guardian, legal representative or prescribed person;

7.2.3 Where a child attends the office without being escorted by an adult to make a report, the child must not be referred or turned away, but a parent/guardian must be notified; if contact cannot be made with the parent or guardian, a Children's Officer at the Child Protection and Family Services Agency (CPFSA) should be consulted;

7.2.4 Where the parent/guardian is complicit or is the subject of the report, the child shall be interviewed in the presence of another adult or prescribed person;

7.2.5 All victims must be referred for counseling to the Victim Services Branch (VSB). The relevant referral form must be completed and submitted to the VSB; and all child victims must be referred to the CPFSA for further intervention. Additionally, pregnant children must be referred to the Women's Foundation of Jamaica for further intervention.

7.3 Handling reports or investigation regarding Children as Offenders

7.3.1 All interaction with children who come in conflict with the law must be in strict adherence with the relevant legislation and the JCF Child Interaction Policy & Standard Operating Procedures; and

7.3.2 The child must be referred to the CPFSA for further intervention.

7.4 Medical Examination of Victims

7.4.1 Victims of sexual offences (such as Rape and cases where sexual intercourse or grievous sexual assault is determined to have occurred) and child abuse shall

be medically examined by the Medical Doctor at CISOCA or taken to an external government medical facility to be examined.

- 7.4.2 When a case of Rape has been brought to the attention of the police by a medical facility, the Sub-Officer on duty shall assign a preliminary investigator and cause a SAFE KIT to be provided to the medical facility or doctor within **seventy-two (72) hours** of the offence. (where seventy-two (72) hours have elapsed, then swabs and smears maybe requested).
- 7.4.3 Where a reported case of sexual offence is brought to the attention of CISOCA by a medical facility, a visit must be made to the facility.
- 7.4.4 where a victim is referred to CISOCA by a medical facility, the procedures as at **9.3.2 and 9.3.3** shall apply.
- 7.4.5 Evidence and any other documentation obtained from the medical facility will be handled in adherence with the JCF guidelines for handling exhibits. Any transfer of evidence or documents must follow proper chain of custody guidelines and be accompanied by appropriate signature and identification i.e. police regulation number.
- 7.4.6 All children under the age of twelve (12) years may be referred or escorted to the Bustamante Hospital for Children for a Medical Examination; and
- 7.4.7 All children who are victims of sexual abuse, particularly where the severity of the case requires the victim to be medically examined, must be referred to the Victim Services Division, for counselling.

7.5 Use and Chain of custody of SAFE Kit

- 7.5.1 A SAFE Kit must be provided to the Medical Doctor to effect specimen retrieval in case of sexual offences.
- 7.5.2 Before a SAFE Kit is issued for usage, the expiration date must be verified. Where the date has expired, this kit must be disregarded and not be used;
- 7.5.3 Where a SAFE Kit is collected from the medical facility, the member receiving the kit must ensure that the kit is sealed and labelled with name of the victim, source of specimen, name of person collecting, date and time of collection.
- 7.5.4 SAFE Kits must be appropriately labelled and sealed with sterile water to the adhesive strips. After the envelope is sealed, the examiner should sign across the edges as a sign that the contents were not tampered with;

- 7.5.5 A Sexual Assault Forensic Examination SAFE Kit Form must be completed by the medical doctor who conducted the examination;
- 7.5.6 Where a member comes in contact with a SAFE Kit, it must be documented outlining the name of the member and date and time of handling;
- 7.5.7 When a SAFE Kit is handed over to an investigating officer, the kit must be placed in refrigeration, where it cannot be delivered to the Institute of Forensic Science and Legal Medicine immediately;
- 7.5.8 Where a SAFE Kit is being transported to the Institute of Forensic Science and Legal Medicine, the procedures outlined in the JCF guidelines for the handling of exhibit must be adhered to;
- 7.5.9 When a SAFE Kit is retrieved from refrigeration this must be recorded outlining the name of the person who retrieves along with the date and time; and
- 7.5.10 Whenever it is required for a SAFE Kit to be destroyed, a written report must be submitted to the Divisional Detective Inspector stating the circumstances and the reason for the request.

7.6 Exhibit Storage and Management

- 7.6.1 A secured room shall be designated for the storage of all exhibits;
- 7.6.2 A Storekeeper shall be assigned with primary responsibility for the safe custody and management of exhibits; and
- 7.6.3 Record shall be kept of all inventory and movement of exhibits.

7.7 Investigation of Sexual Offences in Collaboration with Other Government Agencies

- 7.7.1 CISOCA will establish partnership with key stakeholders to collaborate with other agencies and singular entities that may need to be involved in the investigative process from initial report to case disposal within the courts.

7.8 Case Reviews and Case Conferences

- 7.8.1 Case reviews and case conferences shall be conducted in accordance with the JCF Case Management Policy & Standard Operating Procedures.

7.9 Confidentiality

- 7.9.1 Systems must be implemented and maintained to safeguard victims' information. This includes, *inter alia*, the storage of registers, case files and records containing detail of reports and identity of victims and/or offenders; and
- 7.9.2 The release of information, to include *inter alia*, media broadcast, press release and/or social media postings must be authorized and in accordance with the JCF protocols for external communication and use of social media.

7.10 Wanted Persons and Persons of Interest

- 7.10.1 The publication of individuals as wanted or person of interest shall be coordinated through ACP CIB and in keeping with the JCF Wanted Person and Person of Interest Policy; and
- 7.10.2 CISOCA shall collaborate with and coordinate investigative, intelligence and operational activities with investigation and intelligence partners to apprehend offenders.

7.11 Provision of Victim-Centered and Child-Sensitive Services

- 7.11.1 The CISOCA shall operate in the best interest of victims while upholding the human rights of offenders;
- 7.11.2 Statements from children should be recorded by the IO as soon as practicable except where a written professional or expert opinion (medical or psychological) recommends otherwise. All statements must be recorded in the presence of a parent/guardian, a Prescribed Person as defined under Section 6 the Child Care and Protection Act 2004 or legal representative, except where it is alleged or suspected that the parent/guardian is the offender or may be complicit;
- 7.11.3 Tact and sensitivity shall be the tenet of the investigative process and care should be taken to avoid the re-traumatization of victims; and
- 7.11.4 Interview Rooms must be conducive to comfort and confidentiality.

8.0 References

This JCF Standard Operating Procedures should be read in conjunction with:

- 8.1** Child Care and Protection Act, 2004
- 8.2** Sexual Offences Act, 2009
- 8.3** DNA Evidence Act, 2016

- 8.4 Evidence Act, 1997
- 8.5 Trafficking in Persons Act, August 2015
- 8.6 Child Pornography Act, 2009
- 8.7 Offences Against the Person's Act
- 8.8 Child Diversion Act, 2018
- 8.9 JCF Case Management Policy and Standard Operating Procedures
- 8.10 Wanted Person and Person of Interest Policy

9.0 Relevant Form

The following are relevant Form(s):

- 10.1 JCF CISOCA Referral Form

10.0 Relevant Record

- 11.1 JCF CISOCA Customer Attendance Book

Appendix 1: JCF CISOCA Customer Attendance Book



Jamaica Constabulary Force
Centre for the Investigation of Sexual Offences and Child Abuse
CUSTOMER ATTENDANCE BOOK

Cons No.	Date & Time reported	Offence	Complainants Information	Parent/Guardian information	Suspect/Accuse information	Intake Officer	Source of Information	CPFSA Officer	Victim Services Branch (VSB)	Doctor	Investigating Officer	Remarks



Jamaica Constabulary Force
Centre for Investigation of Sexual Offences and Child Abuse

REFERRAL FORM

FROM: THE CENTRE FOR INVESTIGATION OF SEXUAL OFFENCES AND CHILD ABUSE
(CISOCA) 6 UPPER MUSGRAVE AVENUE, KINGSTON 6

TO: ☐ VICTIM SUPPORT BRANCH, 47E OLD HOPE ROAD, KINGSTON 5, TEL#: 946-0663
☐ WOMEN CENTRE OF JAMAICA FOUNDATION, 42 TRAFALGAR RD, KGN 10
☐ OTHER (Please indicate)

RE: REPORT OF SEXUAL OFFENCE/CHILD ABUSE

DATE OF OFFENCE:

NAME OF VICTIM:

ADDRESS OF VICTIM:

CONTACT NO: AGE: SEX:

NEXT OF KIN:

RELATION TO VICTIM:

NATURE OF REQUEST:

VERY URGENT ☐ URGENT ☐ NOT URGENT ☐

REFERRED BY GUIDANCE COUNSELLOR YES ☐ NO ☐

IF YES, STATE NAME OF SCHOOL:

BRIEF SUMMARY OF REPORT:

.....

.....

.....

DATE OF REQUEST:

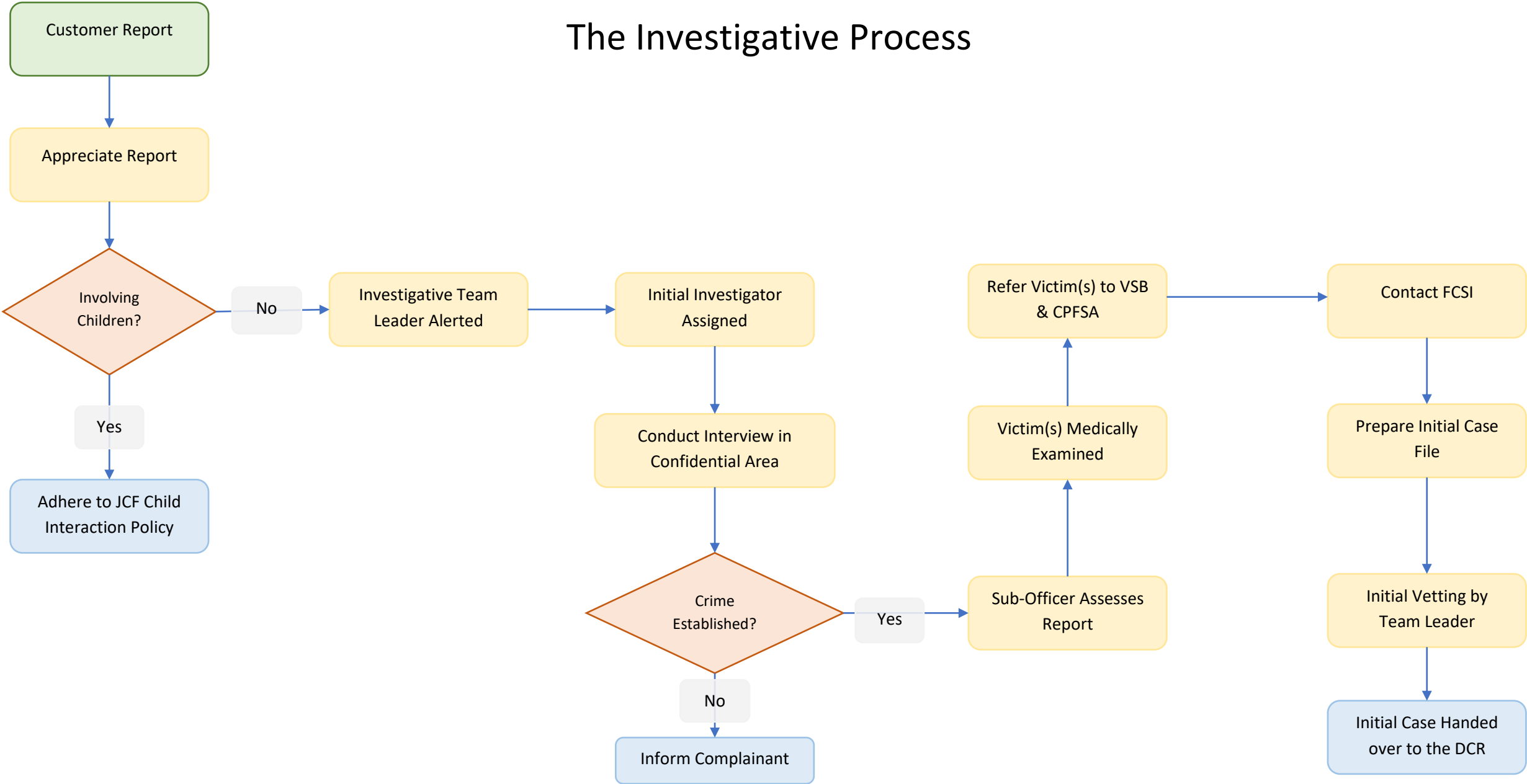
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Investigating Officer

.....

Superintendent of Police
CISOCA

The Investigative Process



Workflow for Divertible Criminal Offences

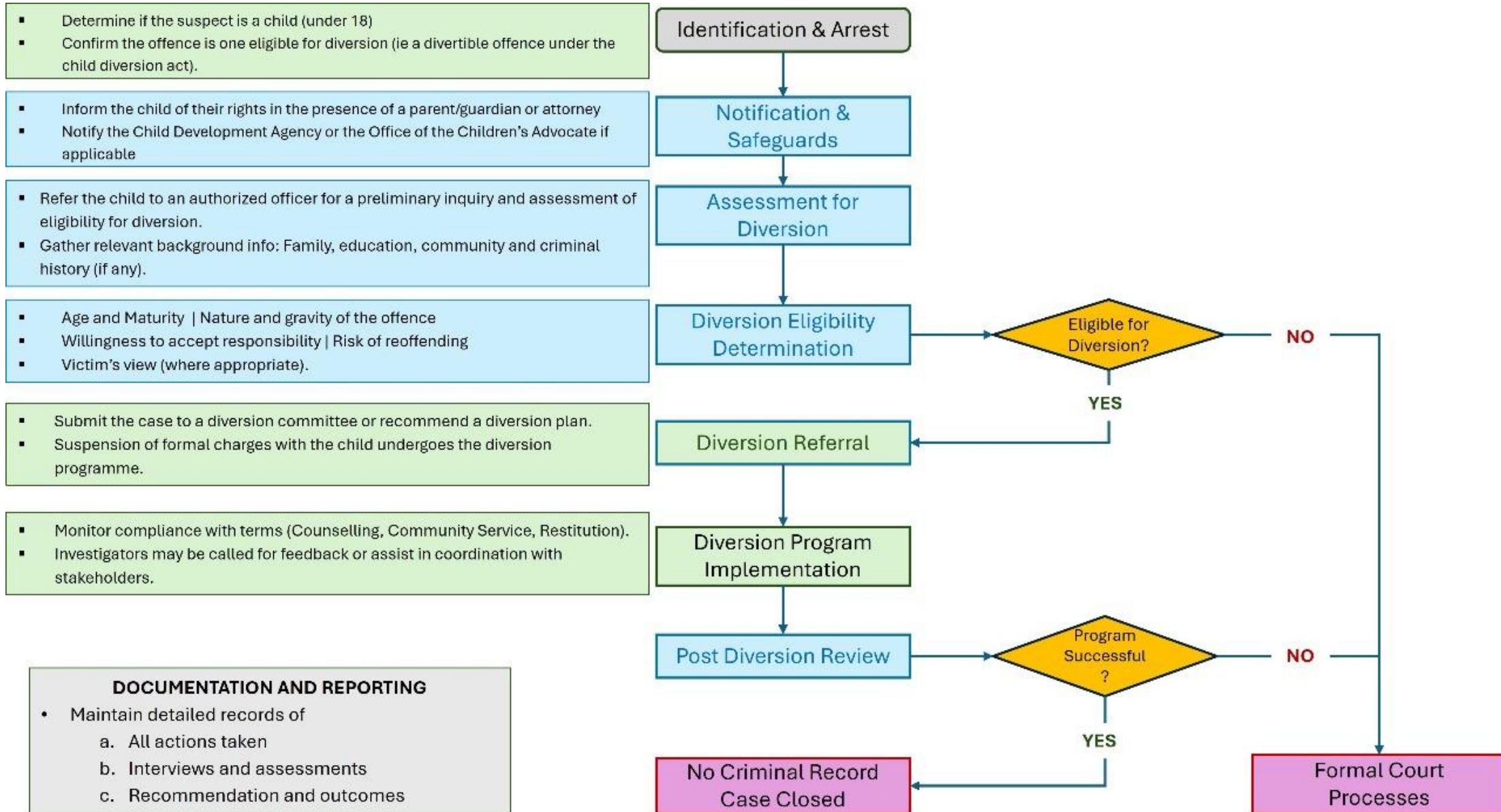


EXHIBIT HANDLING PROCESS FLOWCHART

